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The Indian Renter's Playbook

2026-27

Find, sign, live in and leave a rental
without losing your money.

What deposit is really legal where you live — and the Bengaluru 'two-month cap' that is not real. The 14-day flat hunt. Nine scams running in 2026. The rent agreement clause by clause. HRA and TDS decoded. The move-out protocol and the escalation ladder that gets your deposit back.

What's inside

Thirty-two short chapters across six parts, plus twelve working appendices. Read Part One before you start looking; keep Parts Three and Five open on the day you sign and the day you move out.

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How to use this playbook

This is a system, not an essay. Part One tells you what the law actually says in your state — because that single fact decides how much money you can keep. Parts Two to Five walk you through the four moments where renters lose money: the hunt, the signature, the monthly payment, and the exit. The appendices are tools you can print and use the same day.

Nothing here is legal advice for your specific dispute. It is a map of the rules, the paperwork and the escalation routes, so that when you speak to a landlord, a broker or a lawyer you already know the terrain.

How this playbook pays for itself

One decision — the deposit — can be worth more than a year's rent in saved cash. Here is the arithmetic that makes the guide worth far more than its price.

Rs 2,40,000 saved by cutting a Bengaluru deposit from 10 months to 2 on a Rs 30,000 flat	Rs 30,000 broker fee avoided by finding an owner-direct flat	Rs 14,400 TDS you must handle correctly on a Rs 60,000/month rent	3 years the limitation window to recover a withheld deposit
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The playbook is organised around those four numbers: what the law lets you keep, what you should never pay a middleman, what the tax code gives back or takes, and how long you have to reclaim a deposit that has been wrongfully held.

Who this is for

Anyone signing a rent agreement in India in 2026-27 — a first-jobber moving to a new city, a family relocating, a student leaving home, or an experienced renter who has simply never read the clauses. It assumes no legal background and no prior knowledge of tenancy law.

PART ONE**Know the rules before you spend a rupee**

There is no single rental law in India. Your rights — and your deposit — depend on where the flat is. These six chapters give you the lay of the land, a worked budget, and the choice between a PG and a flat.

1. The Rs 50,000 problem nobody explains

India's rental market has a quiet tax on being new. It is the gap between what the law allows and what the person at the door asks you to pay. In Bengaluru, Mumbai and Delhi that gap can be ten months' rent instead of two — a difference of Rs 2,00,000 or more sitting in someone else's bank account for a year, refundable only if you know how to ask. Most renters never learn the rules until the day the rules cost them money.

Three things go wrong again and again. First, the deposit: renters pay more than the law permits because nobody told them what their state actually caps — or that in most cities there is no cap at all, which changes the whole negotiation. Second, the agreement: clauses about repainting, cleaning and 'damages' are signed without being read, and they are exactly the clauses a landlord reaches for at exit. Third, the exit: the deposit is 'forgotten', and the renter does not know that a registered-post demand letter and a small-causes suit are cheap, routine and usually enough.

This playbook closes all three gaps. It is built on one principle: the renter who knows the rules keeps their money.

The bottom line

In most of India there is no legal ceiling on a security deposit — it is whatever you sign. Only four states have capped it. So your first job is not to argue about the number; it is to know whether your state has a cap at all, and then to negotiate with evidence instead of hope.

Everywhere else, a withheld deposit is a plain money debt. The route to recover it is a civil suit — not, usually, a consumer complaint — and the paper trail you build on move-in day is what wins it.

2. India runs two rental systems. Know which one is yours

The single most useful thing you can learn about renting in India is that there is no single rental law. Housing is a state subject. Your rights depend on where the flat is, not on a national rule. Two frameworks run side by side.

The older system is the state Rent Control Acts — the Karnataka Rent Act 1999, the Maharashtra Rent Control Act 1999, the Delhi Rent Control Act 1958, and so on. Many were written decades ago

to protect long-term tenants in an era of scarcity. Several apply only to low-rent premises, so most modern city tenancies fall outside their rent-control chapters even where the Act is technically in force.

The newer system is the Model Tenancy Act, 2021 (MTA). The Union Cabinet approved it on 2 June 2021 and circulated it to states on 7 June 2021 as a template — not as a national law. Each state must pass its own version. The MTA introduces a written agreement filed with a Rent Authority, a deposit cap (two months' rent for homes, six for commercial premises), and a three-tier dispute ladder: Rent Authority, then Rent Court, then Rent Tribunal, with a target of deciding cases in about 60 days.

Four years on, adoption is thin. As of 2026, only four states have laws on MTA lines, and two of those predate the final model:

State	Status in 2026	Residential deposit cap
Assam	Adopted, near-verbatim (2021)	2 months
Uttar Pradesh	Adopted, own Act (2021)	2 months
Tamil Nadu	Own Act (2017), pre-dates MTA	3 months
Andhra Pradesh	Own Act (2018), pre-dates MTA	3 months
Every other state / UT	Not adopted — old Rent Control Act applies	No statutory cap

The central MTA also applies directly in a few union territories administered by the Centre, including Andaman and Nicobar, Dadra and Nagar Haveli, Daman and Diu and Lakshadweep. If you rent in a major metro — Mumbai, Delhi, Bengaluru, Hyderabad, Kolkata, Pune, Gurgaon, Chennai's newer stock — assume the old system applies until you have checked, and that there is no deposit cap unless your state says so.

Check your state in five minutes

Search '[your state] tenancy act' or '[your state] Rent Authority'. If a Rent Authority portal exists, your state has adopted an MTA-style law — register your agreement and use that forum. If only a Rent Control Act shows up, you are in the old system and your contract is king.

3. What security deposit is really legal where you live

A security deposit is your money, held by the landlord as security against unpaid rent or damage. Legally it is a bailment: the landlord is a bailee who must return the trust money when the purpose is served. The Supreme Court has held that withholding it without valid reason makes the landlord liable to repay the principal plus interest. So the deposit is never the landlord's to keep — it is only theirs to hold.

But the amount you may be asked for varies enormously, and in most of India the law sets no ceiling at all. Here is the honest position by market:

Where you rent	Typical market deposit	What the law caps
Bengaluru (Karnataka)	2 to 10 months' rent	No statutory cap — it is a commercial term

Where you rent	Typical market deposit	What the law caps
Mumbai / Pune (Maharashtra)	2 to 3 months	No statutory cap; every agreement must be registered
Delhi	1 to 3 months	No cap; the Rent Control Act covers only very low rents
Hyderabad (Telangana)	2 to 3 months	Set by contract
Lucknow / Noida (UP)	2 months	2 months (MTA-style Act, 2021)
Guwahati (Assam)	2 months	2 months (Tenancy Act, 2021)
Chennai (Tamil Nadu)	2 to 3 months	3 months under the state Act

Read that table carefully, because it is the whole game. In Bengaluru, Mumbai and Delhi — the cities with the highest rents and the most newcomers — the deposit is whatever you agree to. There is no number you can point at. That does not mean you have no leverage; it means your leverage is negotiation and documentation, not a statute. In UP and Assam you can point at the two-month cap. In Chennai the figure is three months.

Two rules matter more than the cap. First, pay the deposit by bank transfer, to the account of the person named as owner, with a purpose note that says 'security deposit'. Cash leaves no trail. Second, treat the deposit as a loan you are making: get a signed receipt, and put the refund timeline in the agreement. A UPI transfer with a note, a receipt and the agreement together are what prove the deposit was ever paid if it is disputed later.

Do not confuse the security deposit with 'advance rent'. Advance rent is simply rent paid before it is due — usually one month — and it is consumed by your first month of occupation. A security deposit is held for the whole tenancy and returned at the end. Some landlords blur the two, or ask for both and call one 'advance' to dodge a deposit cap in states that have one. Ask for the labels to be written clearly in the agreement: how much is advance rent, how much is refundable deposit, and what each covers.

4. The Bengaluru 'two-month cap' that is not real

In early 2026, dozens of blogs, apps and rental platforms told Bengaluru renters that the law had capped deposits at two months' rent and that landlords asking for ten months were now breaking it. That claim is wrong, and repeating it can cost you a flat or an argument you cannot win.

What actually happened: the Karnataka Legislature passed the Karnataka Rent (Amendment) Act, 2025, the Governor assented on 7 January 2026, and it was gazetted and brought into force on 8 January 2026. Read the Bill and the Act and you find that it amends exactly four things — sections 24, 53, 54 and 55 of the Karnataka Rent Act, 1999. All four changes are about penalties: they remove imprisonment for procedural breaches and replace fines with higher civil penalties. The law firms that analysed it were blunt: the amendment 'does not alter the substantive rights and obligations governing tenancy, such as grounds of eviction, fixation or revision of rent, duration of tenancy, or security deposit limits.'

In plain words: Karnataka decriminalised some offences. It did not cap deposits. The eight- to ten-month deposit that Bengaluru landlords have asked for since the 1990s remains lawful there in 2026, because Karnataka has not adopted the Model Tenancy Act and its own Act sets no deposit ceiling.

Why this matters to your wallet

If you walk into a Bengaluru negotiation and announce that the law caps the deposit at two months, you will be wrong, and the landlord or broker who knows the market will simply move on to the next tenant. What works instead: point to your documented profile (salary slips, offer letter, previous-landlord reference), offer a longer notice period or a small rent premium, and target flats that have sat vacant. That is how Bengaluru renters actually negotiate the number down — leverage, not a statute that does not exist.

The wider lesson is bigger than one city. Rental platforms profit from volume, not from accuracy, and a confidently stated but wrong rule spreads faster than a dry statute. Whenever a 'new rule' would save you money, verify it on the government portal or the actual Bill text before you rely on it in a negotiation. The four states above have real caps; the rest of India, for now, does not.

One more thing to expect: adoption is moving, slowly. If your state enacts an MTA-style law while you are mid-tenancy, the new caps usually apply to agreements signed after the law comes into force — they are prospective. An existing tenancy with a higher deposit is generally not cut automatically when a state adopts the model, so check the commencement date as well as the cap.

5. The renter's money map: a worked first-flat budget

Renters routinely budget for the rent and forget the four other costs that hit on day one: the deposit, one month's advance, the agreement's stamp duty and registration, and moving. The table below shows a realistic all-in move-in figure for three cities, using each city's actual deposit position. The rent and deposit figures are illustrative — plug in your own numbers — but the shape of the total is the point.

Cost	Bengaluru (2BHK)	Mumbai (1BHK)	Delhi (1BHK)
Monthly rent	Rs 30,000	Rs 45,000	Rs 25,000
Security deposit	Rs 60,000 (2 months)	Rs 1,35,000 (3 months)	Rs 50,000 (2 months)
One month advance rent	Rs 30,000	Rs 45,000	Rs 25,000
Stamp duty	About Rs 500	About Rs 600	About Rs 6,000 (2% legal rate)
Registration	Nil (11 months)	Rs 1,000 (mandatory)	Rs 1,100 (if registered)
Brokerage	Rs 0 (owner-direct)	Rs 0 (owner-direct)	Rs 0 (owner-direct)
Moving / setup	Rs 4,000	Rs 4,000	Rs 3,000
All-in to move in	About Rs 94,500	About Rs 1,85,600	About Rs 85,100

Two lessons jump out. The deposit — not the rent — is the dominant first cost, and cutting it from ten months to two in Bengaluru saves you Rs 2,40,000 up front on this flat. And brokerage is a choice: finding an owner-direct listing turns a Rs 30,000 broker fee into zero. Run this table for your own city before you start viewing flats, so that a deposit conversation is about a number you already understand.

The deposit is a loan — treat it like one

You are lending the landlord a lump sum for the length of the tenancy. That reframing changes your behaviour: you get a receipt, you write the refund date into the agreement, you pay by transfer, and you never let it become 'cash that was handed over'.

6. PG, co-living or a flat: choosing your first place

For a first move to a new city, the PG-versus-flat decision is more consequential than the rent difference suggests. A paying-guest or co-living room is typically all-inclusive — rent, electricity, water, Wi-Fi and often meals in one figure — with a much smaller upfront cost, usually around one month's rent as deposit. A flat is more private and cheaper per square foot, but demands the full deposit, an advance, the agreement paperwork and your own utility connections.

	PG / co-living	Independent flat
Upfront cost	Low — usually one month's deposit	High — 2 to 10 months' deposit plus advance
Monthly cost	Rs 8,000-18,000 all-inclusive in most metros	Rent + maintenance + utilities
Privacy	Shared common areas	Entire flat to yourself
Legal cover	Usually a leave-and-licence; little rent-control protection	Written agreement; more protection and evidence
Best for	First 3-6 months while you learn the city	Once you know the area and want to settle

A practical pattern many newcomers use: take a PG for the first three to six months, learn which localities actually work for your commute, then move to a flat with a deposit you have saved and a landlord you have had time to vet. For a PG, still insist on a written agreement, a receipt for the deposit, and clarity on whether food and utilities are included. A PG agreement is a licence, not a tenancy, so the protections in Part Five of this playbook apply less fully — which is another reason not to park a large deposit there.

PART TWO

Find the flat without losing money

The hunt is where most renters pay their first avoidable rupee — a broker fee, or worse, a fraud. These five chapters give you a two-week process, an honest view of brokers, the nine scams running now, and the scripts that win a negotiation.

7. The 14-day flat hunt that beats the broker

Most renters lose money in the hunt before they have signed anything: a month's rent to a broker, or a 'visiting fee' to a stranger. A calm two-week process avoids both. The core rule is simple — decide the numbers and the area first, so you are choosing between flats instead of reacting to whoever calls first.

- 1 Days 1-2 — set the all-in budget, not the rent.** Add the deposit, one month's advance rent, society maintenance, the agreement's stamp duty and registration, and moving costs. Use the money map in Chapter 5.

- 2 Days 2-3 — pick two or three localities by commute, not by a friend's recommendation.** Target areas within roughly five kilometres of work; in a city like Bengaluru a ten-kilometre commute can be sixty to ninety minutes each way.
- 3 Days 3-8 — search two or three sources, not ten.** Use a large portal with an 'owner' filter, a verified owner-direct platform, and locality WhatsApp or Facebook groups for PG and shared options. Shortlist four to six flats in the same pocket before you call anyone.
- 4 Days 8-12 — visit with a checklist, never pay before you see the flat.** Confirm the person showing it is the owner or an authorised representative, and ask to see ownership proof — a sale deed, property-tax receipt or society allotment.
- 5 Days 12-14 — agree terms verbally, then read the draft before any large transfer.** Freeze rent, deposit, maintenance, parking, lock-in, notice period and the deposit-refund timeline in writing — ideally in the chat — before money moves.
- 6 Sign, then pay, in that order.** A small token may change hands early, but the deposit should move only against a signed agreement and a receipt, by bank transfer.

The one rule that prevents most losses

Never pay a deposit, a token, a booking fee, a 'visiting pass' or a 'gate pass' before you have stood inside the flat and confirmed the person has the right to rent it. No legitimate landlord charges you to view a property.

Build a renter profile before you start, and it will do half the negotiating for you. A landlord who can see financial stability needs less deposit as insurance. Carry a folder — or a single PDF — with your last three salary slips, the offer or appointment letter, six months of bank statements, a previous-landlord reference (a phone number, not just a name), and a masked Aadhaar copy. Showing it before you are asked marks you as the reliable tenant every landlord wants.

On the visit itself, check the things photos hide: water pressure in the shower, the age of the wiring, mobile signal in the bedroom, whether the windows actually close, and the commute at peak hour. Ask the security guard or a neighbour which flats are genuinely vacant — building staff usually know. And ask about the building's water supply, because in many metros it is seasonal and invisible in a five-minute viewing.

8. Brokers, honestly: what they do, what they cost

A broker is not the enemy, but the fee is real and often avoidable. In Bengaluru and Mumbai the standard commission is one month's rent, and two for premium properties — on a Rs 30,000 flat that is Rs 30,000 to Rs 60,000, paid before you have slept a single night there. That money could be your deposit instead.

Be honest about what a broker actually delivers. A typical urban broker posts your search on a couple of portals, forwards four to eight listings (some stale), accompanies you on two or three visits, and smooths the awkward rent conversation. What a broker usually does not do: confirm the ownership documents, verify the landlord's identity, check whether the society allows your tenant profile, or stand behind the deal if it falls apart. Their commission triggers only when a deal closes, which means anything that closes it faster — a slightly higher rent, a glossed-over restriction — is quietly in their interest, not yours.

You can replace almost all of that yourself. The information advantage brokers once held has largely gone: renters publish their requirements online, owners list directly, and the paperwork (an 11-month agreement, e-stamping, a police verification) is routine. What you must bring is a clear renter pitch and the willingness to vet a landlord the way they vet you.

- **Before a site visit, ask directly:** are you the owner or a representative? What is the deposit and the lock-in? Is maintenance included in the rent? Are there restrictions on bachelors, pets or guests? Will a written agreement be made, and at whose cost?
- **Verify the owner:** ask for the sale deed, society allotment or property-tax receipt at the time of the agreement. If the owner is abroad, insist on a notarised power of attorney for whoever signs.
- **Never pay a 'token to block the flat' before a visit** — that is the single most common structure of rental fraud in India.
- **If a broker is involved, fix the fee and its trigger in writing.** Ask what happens to the fee if the owner's approval fails, possession is delayed, or the terms change. Pay it only when the deal is stable.

9. Nine rental scams running in 2026 — and how to kill each

Rental fraud has become professional. Scammers now use AI-generated property images, cloned listings and even voice and video calls that impersonate a landlord. In September 2026 a 24-year-old Bengaluru employee lost Rs 21.1 lakh to a single 'rental' — two fraudsters posing as the owner and the society manager kept demanding money for a visiting pass, verification, rent and a 'refundable' deposit until she stopped. The amount was extreme; the mechanics were ordinary. Here are the nine variants active now.

The scam	How it runs	How you kill it
Token-money grab	Attractive flat, ask for a token to 'hold' it, then vanish	Never pay before an in-person visit
Visiting / gate-pass fee	Rs 2,000-3,000 'refundable' to view the flat	No society charges to view a flat. Walk away
Cloned listing	Real photos copied onto a fake ad at below-market rent	Reverse-image search the photos; cross-check the address
AI landlord	AI images, cloned voice, brief grainy video 'tour'	Insist on a live video call and an in-person visit
QR-code phishing	'Register your Aadhaar' via a QR that drains your account	Real apps never take a UPI QR for Aadhaar; never enter a PIN to 'verify'
Fake e-stamp	An official-looking agreement with a fake stamp number	Verify the e-stamp on the state portal before paying
Out-of-town owner	Owner is abroad; keys by courier after payment	Refuse. Insist on a local representative or walk away
Escalating extras	Low rent, then 'society migration', 'club' and 'maintenance' fees appear	Get the all-in number in writing before any transfer
Personal UPI demand	Deposit to a UPI ID in a different name from the owner	Pay only to the owner's bank account, with a receipt

Four red flags catch most of these before money moves: rent meaningfully below market for the area; any payment requested before an in-person visit; a landlord always 'out of town' or unwilling to meet; and communication pushed onto messaging apps with excuses to avoid a call. The single check a scammer cannot survive is the in-person visit — or, if you are relocating, a trusted friend standing in the flat.

If you are defrauded, act within hours: call the national cybercrime helpline 1930 and file at cybercrime.gov.in, ask your bank to freeze the transaction, report the listing to the platform, and file a police complaint. Speed decides whether the money is recoverable. Under the Bharatiya Nyaya Sanhita, 2023, cheating is punishable, and cyber-fraud cases are registered routinely.

Verifying ownership is easier than it sounds. Ask for the sale deed or the society allotment letter, and for property-tax receipts; where the owner claims a registered sale, the details can be cross-checked on the state land-records portal. A seller's 'Index-II' or the society's records will show who actually owns the flat. If the person cannot produce any ownership proof, stop.

10. Renting as a woman, a bachelor or a student

A large share of Indian rental friction is not about money but about who you are. Societies and landlords sometimes restrict bachelors, certain food habits, pets, guests or working hours. These restrictions are market practice more than settled law, and their enforceability varies — so the practical move is to surface them early and get them in writing, not to discover them after you have paid.

- **Ask before you visit:** 'Are there any society restrictions on bachelors, food, pets or guests?' Get the answer in the chat, so it is on record.
- **Read the agreement for restriction clauses.** If a blanket ban appears that was never mentioned, raise it before signing and negotiate it out or clarify it in writing.
- **Complete police verification.** In cities like Bengaluru it is the owner's duty and is routine elsewhere; a verified tenancy is stronger evidence and removes an excuse to evict.
- **For women renting alone:** a registered agreement is valuable address proof, and a written, dated record of the landlord's entry-notice and repair obligations is your best protection against informal pressure.
- **For students and first-jobbers:** a PG or co-living room for the first few months is often the calmer choice while you learn the city, then move to a flat once you have a reference and a saved deposit.

If a restriction feels discriminatory or a landlord behaves coercively — entering without notice, threatening to cut power or water, withholding essentials — treat it as a tenancy-rights issue, not a personal one. Document it, and see Chapter 17 on your rights and Chapter 23 on escalation.

11. Negotiation scripts that actually work

Renters often lose negotiations because they argue about the wrong thing. In most cities the deposit is not capped, so the winning move is not a legal citation — it is a trade. Offer the landlord something they value in exchange for the number you want. Here are four scripts you can adapt.

Script 1 — reducing the deposit

'I understand the deposit has historically been high here, and I want to make this easy for you. I can offer a three-month notice period instead of one, and I am happy to pay a slightly higher rent. In return, could we keep the deposit at two months? Here are my salary slips and my previous landlord's reference — my record is clean.'

Script 2 — a flat that has sat vacant

'How long has the flat been empty? I am ready to move in this week and I will sign today if we can agree the deposit at two months. A vacant month costs more than the difference we are discussing.'

Script 3 — repairs before move-in

'Before I pay the deposit, can we confirm in writing that the leaking tap and the broken geyser will be fixed before I move in? I will note it in the agreement inventory so we both have the same record.'

Script 4 — the exit refund

'I am happy to leave the flat in good condition. Can we write into the agreement that the deposit is refunded within 30 days of my handing back possession, less any itemised and evidenced deductions? That protects both of us.'

Two rules sit under all four. First, put every agreed term in writing — a WhatsApp message counts. Second, never argue from a rule you have not verified; a wrong 'the law says' destroys your credibility for the whole negotiation.

PART THREE**Sign safely and move in clean**

This is the day your deposit becomes winnable or losable. Five chapters on the agreement, the stamp and registration, the move-in evidence file, the charges nobody quotes you, and setting up your new home.

12. The rent agreement, clause by clause

The agreement is the most important document you will sign all year, and most renters read only two numbers in it — rent and deposit. The clauses that decide your money at exit are further down. Read every one of these before you sign, and get anything important into writing, because once a dispute reaches a court or a tribunal, written clauses carry far more weight than verbal assurances.

Clause	What to insist on
Security deposit	Amount, a refund timeline (e.g. 'within 30 days of vacating'), what can be deducted, and proof required for any deduction
Deduction standard	Deductions only for damage beyond normal wear and tear, with an itemised statement and bills — not vague 'painting' or 'cleaning' charges

Clause	What to insist on
Lock-in period	How long you must stay, and the exact penalty for leaving early. Often the biggest hidden cost
Notice period	How many days' notice each side gives (usually 1-3 months). Match it to your job situation
Rent revision	Whether and when rent can rise. Under MTA-style laws, once a year with three months' notice
Maintenance	Whether society maintenance is inside the rent or extra, and who pays for repairs versus replacements
Landlord entry	A written notice period (24-48 hours) before any inspection or repair visit
Painting / restoration	Delete blanket 'repaint on exit' clauses or cap them in rupees. Routine repainting between tenants is a landlord cost
Inventory	Attach a signed list of furniture and fittings with their condition

Two practical rules. First, sign in duplicate and keep your original copy — the landlord keeps one, you keep one. Second, photograph the flat in its current condition and get the inventory acknowledged in writing before you hand over the deposit; that record is your defence against inflated damage claims months later.

The three clauses that cost renters the most money

A blanket 'repaint on exit' clause · a vague 'damages to be deducted at landlord's discretion' line · and a lock-in with an uncapped penalty. Rewrite all three before you sign, or at least cap them in rupees.

The clause a landlord prefers	The clause you want instead
'The flat will be repainted at the tenant's cost on vacating.'	'Normal wear and tear is not chargeable; repainting is the owner's cost.'
'Damages will be deducted at the landlord's sole discretion.'	'Deductions only with an itemised statement and bills, for damage beyond normal wear and tear.'
'The deposit is refundable at the landlord's convenience.'	'The deposit is refunded within 30 days of vacant possession, after itemised deductions.'
'The tenant will not hold the landlord responsible for any repairs.'	'The owner maintains the structure, plumbing and electricals; the tenant replaces consumables.'

13. Stamp duty, registration and the 11-month agreement

Why is almost every Indian rent agreement eleven months long? Because of a single line in the Registration Act, 1908. Section 17 makes a lease of twelve months or more compulsorily registrable at the Sub-Registrar's office — a longer, costlier process. An eleven-month agreement needs only to be stamped, not registered, so the market standardised on eleven months and renews annually.

That shortcut is legal in most states, with one loud exception: in Maharashtra, Section 55 of the Maharashtra Rent Control Act makes every leave-and-licence agreement registrable regardless of duration. If you rent in Mumbai or Pune, expect registration, a Rs 1,000 urban registration fee, and stamp duty of 0.25% of the rent plus a notional 10% a year on the refundable deposit.

Stamp duty is a state tax and the rate varies widely — from about 0.2% in Gujarat to 2% in Delhi and UP. An unstamped or under-stamped agreement is weak evidence if a dispute arises, and an unregistered lease of twelve months or more is not admissible as evidence of its terms. The figures below are typical 2026 residential rates; confirm the exact amount on your state's stamps and registration portal before you pay.

State	Stamp duty (typical residential)	Registration
Maharashtra	0.25% of rent + 10%/yr on deposit	Rs 1,000 urban; mandatory for all
Delhi	2% of average annual rent	Rs 1,100 if term 12+ months
Karnataka	About 1% of annual rent (Rs 500 cap common for 11 months)	Rs 500 if 12+ months
Tamil Nadu	About 1% of rent + deposit	1% of rent (max Rs 5,000)
Uttar Pradesh	About 2% of annual rent	2% of rent (min Rs 300)
Telangana	About 0.5% of total rent	Rs 1,000 in city limits
Gujarat	About 1% of annual rent	1% of rent (min Rs 100)

Many cities also require tenant police verification — an owner's duty in Bengaluru, where the details go to the city police e-services portal, and a routine step elsewhere. Do it; an unverified tenancy is a red flag for both sides and can delay your possession. A registered or at least properly stamped agreement also serves as address proof for a bank account, Aadhaar updates and a new electricity connection.

14. The move-in protocol: build your evidence file

The deposit dispute you have at exit is won or lost on move-in day. Ten minutes of disciplined documentation now is what lets you answer an inflated damage claim later with a dated photo and a meter reading. Do all six of these before the keys change hands.

- 1 Video walkthrough with the owner present.** Walk the flat on camera, opening cupboards, tapping fittings, showing the kitchen and bathrooms, and the building entry. Narrate pre-existing damage out loud on the video.
- 2 Dated photos of every room,** including scratches, stains and anything already broken. Store them in a cloud folder, not just your phone.
- 3 Meter readings** — electricity and water — written down and signed by both sides on the move-in date.
- 4 Signed inventory** of furniture, appliances and fittings, with condition notes. Count the keys and access cards.
- 5 Receipts** for the deposit and first month, and bank/UPI confirmations with 'security deposit' in the note.
- 6 Owner's details in writing** — full name, PAN and bank account — and a copy of their Aadhaar/PAN. You need the PAN for your HRA claim if annual rent crosses Rs 1,00,000.

Keep the WhatsApp thread

Most Indian tenancy disputes are settled, in practice, on WhatsApp evidence. Keep the thread with the owner. Confirm every promise — repairs, painting, refund timeline — in a message so there is a written record even where the agreement is silent.

Do all of this before you transfer the deposit, not after. Once the money has left your account, your leverage to demand a clean inventory drops sharply. The evidence file is also what makes the move-out protocol in Chapter 22 a formality instead of a fight.

One habit pays for itself: keep the evidence file in the cloud, not only on your phone. Phones are lost, replaced and reset. A folder named for the address — agreement, receipts, photos, meter readings — survives every device change and is ready the day a dispute needs it.

15. Rent, maintenance and society charges decoded

The rent on the listing is rarely the rent you pay. Ask for the all-in monthly number in writing, because society charges and utility bills can add Rs 1,500 to Rs 5,000 a month and often are not included in the advertised figure.

- **Society maintenance** — the monthly charge for common areas, lifts, security and water. Confirm whether it sits inside the rent or is billed separately, and who pays it.
- **Utilities** — electricity, water and gas. Check whether the connection is in the owner's or your name, and how the bill is split in a shared flat.
- **Parking** — often a separate charge, sometimes not included even when promised verbally.
- **Repairs vs replacements** — a leaking tap is usually the owner's; a bulb you broke is yours. Get the boundary in writing.
- **Move-in and move-out society fees** — some societies charge a one-time admin or shifting fee. Ask up front so it is not a surprise.
- **Water and electricity deposits** — a new connection may carry its own refundable deposit; know who gets it back when you leave.

Get the all-in number in one message

Before you agree, send one WhatsApp message: 'Please confirm the total monthly cost including maintenance, and any one-time society or shifting charges.' A written answer settles the argument before it starts.

16. Setting up your new home: the first-week checklist

The first week in a new flat is logistics as much as comfort. Handle these in order and you avoid the small fires that cost money and time later.

Task	What to do
Electricity	Confirm whether the connection is in your name or the owner's; if new, apply to the local DISCOM with your agreement as address proof, and note the meter reading and any deposit

Task	What to do
Water	Check the society's supply and billing; confirm who pays the water charge and how it is metered
Gas	For piped natural gas, apply to the city gas distributor; for LPG, get a connection from a local distributor and know the refill process
Internet	Book installation early — it is the service that takes longest. Keep the installation receipt
Address proof	Use the stamped or registered agreement for a bank account, Aadhaar update or a new connection
Society formalities	Register with the society office, get access cards, and confirm move-in rules and any NOC requirements
Safety basics	Note the location of the main switch and water valve, and test the smoke alarm if there is one

None of this is glamorous, but a documented setup week means that when you leave, every deposit and connection is traceable to a receipt — and nothing is 'the landlord's word against yours'.

PART FOUR

Live in it: rights, tax and clean records

Once you are in, the law protects you more than most tenants realise, and the tax code hands you money back if you keep the paperwork. Five chapters on rights, HRA, TDS and record-keeping.

17. Your rights while you live there

Once you are in possession, the law gives you more protection than most tenants realise — even under the old Rent Control Acts, and more clearly under MTA-style laws. Knowing these four rights changes how you handle a difficult landlord.

Your right	What it means in practice
Quiet possession	Section 108(c) of the Transfer of Property Act, 1882 gives you the right to hold the property undisturbed while you pay rent and keep the terms. The landlord cannot walk in at will
Notice before entry	A landlord must give advance written notice (24-48 hours under most well-drafted agreements) before an inspection or repair visit
Essential services	Cutting off electricity or water to force you out is not a lawful eviction tactic. Under MTA-style laws it is a punishable offence, and you can seek immediate relief
Notice before a rent rise	Rent can be revised only as the agreement provides — under MTA-style laws, once a year with three months' written notice. A unilateral mid-tenancy hike without notice is not enforceable

If a landlord changes the locks or removes your belongings without a court or tribunal order, that is self-help eviction and it is illegal — the Supreme Court has held that even an unauthorised occupant cannot be dispossessed without due process. You can seek restoration under the Specific Relief Act and, for criminal trespass or wrongful restraint, under the Bharatiya Nyaya Sanhita, 2023. Document everything and speak to a local advocate quickly.

Rights come with duties, and the one that matters most is paying rent. Never withhold rent to pressure a repair or a refund — it hands the landlord an arrears ground for eviction and undermines

your credibility on every other issue. Keep paying, and pursue the repair or the refund separately.

18. HRA: the tax break most renters leave on the table

If you are a salaried employee paying rent, House Rent Allowance can cut your tax — but only if you are in the old tax regime. Under the new regime, which is the default, HRA is fully taxable no matter what rent you pay. So the first decision is which regime you are in.

Under the old regime, the exempt part of HRA is the least of three amounts: the HRA you actually received; rent paid minus 10% of your basic salary plus DA; and 50% of basic plus DA in a metro city, or 40% elsewhere. For FY 2025-26 only Delhi, Mumbai, Kolkata and Chennai count as metros. From FY 2026-27, under the Income-tax Rules, 2026, four more cities — Bengaluru, Hyderabad, Pune and Ahmedabad — join the 50% list. That single change can add a meaningful slice of exemption for renters in those cities.

Two documents decide your HRA claim

Rent receipts for every month you claim — mandatory where monthly rent exceeds Rs 3,000, with a revenue stamp if you pay over Rs 5,000 in cash.

The landlord's PAN — mandatory where total annual rent exceeds Rs 1,00,000. If the landlord has no PAN, a signed declaration with their name and address is the usual fallback. Get the PAN on day one of the tenancy; chasing it in March is how claims fail.

Self-employed renters are not left out: Section 80GG gives a deduction for rent paid, subject to its own limits, where neither you, your spouse nor your minor child owns a house in the city where you live. Rent paid to a parent is allowed if it is genuine — actually transferred, declared as the parent's income, and at a market rate.

A word on the regime choice. HRA exemption exists only in the old regime, so if your rent is high relative to your salary and you have other old-regime deductions, run both regimes through a comparison before you decide. HRA-heavy renters should not default into the new regime without checking.

19. TDS on rent: when you must deduct, and how

Most tenants never deal with this, but if you pay more than Rs 50,000 a month in rent, the income-tax law makes you a tax deductor. Ignoring it can trigger interest and a fee, so it is worth ten minutes of understanding.

Two provisions matter. If you are an individual or HUF not liable to tax audit, Section 194-IB applies: when monthly rent to a resident landlord exceeds Rs 50,000, you deduct 2% of the year's rent — not every month, but once, in the last month of the financial year or the last month of the tenancy, whichever is earlier. The deduction is capped at one month's rent. You do not need a TAN; you deposit it using Form 26QC within 30 days and give the landlord Form 16C.

If you are a company, firm, LLP or an individual/HUF liable to tax audit, Section 194-I applies instead: 10% on rent for land, building, furniture and fittings, or 2% on plant and machinery, deducted every month when rent exceeds Rs 50,000, deposited by the 7th of the following month, with quarterly Form 26Q returns and Form 16A certificates.

From 1 April 2026 these rules sit inside the new Income-tax Act, 2025 — the old sections become entries in Section 393, and the qualifying challan-cum-statement becomes Form 141. The rates and

the Rs 50,000 monthly threshold are unchanged. If your landlord is a non-resident, none of this applies: you fall under Section 195, usually 30% plus surcharge and cess, deducted every month, with a TAN and Form 27Q — a costly trap to miss.

Quick example

Rent Rs 60,000 a month for the full year. Total rent Rs 7,20,000. TDS at 2% = Rs 14,400, deducted once from the March rent. You pay the landlord Rs 45,600 in March and remit Rs 14,400 via Form 26QC by 30 April. If the landlord gives no PAN, the rate rises to 20% — still capped at one month's rent.

20. Paying rent so it can never be disputed

A clean payment trail does two jobs: it proves you paid, and it proves the tenancy itself if the agreement is ever lost or disputed. Two minutes a month keeps it clean.

- **Pay by bank transfer or UPI, never cash.** Put a purpose note on each transfer — 'rent March 2027' or 'security deposit'.
- **Ask for a signed receipt** each month or at least annually, and keep the bank record even when you get a receipt.
- **If the landlord refuses to accept rent or give a receipt,** MTA-style laws let you pay by postal money order or deposit the rent with the Rent Authority for two consecutive months. Do not simply stop paying — that creates an arrears ground for eviction.
- **Never withhold rent to 'pressure' a repair or a refund.** It hands the landlord an eviction ground. Keep paying and pursue the issue separately.
- **Keep a single folder** — agreement, receipts, transfers, the WhatsApp thread, move-in photos — so that everything needed for a dispute is in one place.

If you and the landlord agree a rent change, confirm it in writing and start paying the new amount by transfer with a clear note. An informal cash 'top-up' on top of the bank transfer is exactly the kind of payment that disappears from the record — and from your HRA claim.

21. Records for your ITR — what to keep and for how long

Rent is not just a living cost; for salaried renters it is a tax claim, and for anyone who deducts TDS it is a compliance obligation. Keep four things and the paperwork takes care of itself.

- 1 **The agreement**, for the period it covers, in your own file.
- 2 **Rent receipts** for each month you claim HRA, or the bank/UPI trail if you do not collect receipts.
- 3 **The landlord's PAN** where annual rent exceeds Rs 1,00,000 — and a note if the landlord has none.
- 4 **TDS documents** if you deducted — Form 26QC and the Form 16C you gave the landlord.

Keep these for at least the period during which the Income Tax Department can reopen your return; keeping them longer costs nothing and protects you if a claim is ever questioned. A mismatch between the HRA you claim and the figure on your Form 16 is a known scrutiny trigger, so reconcile

the two before you file.

The simplest habit that protects everything

One cloud folder per tenancy, named for the address. Drop in the agreement, receipts, transfers, move-in photos and every TDS document as they happen. If a dispute or a scrutiny notice arrives two years later, you will not have to reconstruct anything.

PART FIVE

Leave well and get your money back

The exit is where the deposit is won or lost. Three chapters on the move-out protocol, the escalation ladder that recovers a withheld deposit, and what a landlord can — and cannot — do about eviction.

22. The move-out protocol: how to get your deposit back

The exit is where the deposit is won or lost. Run it as a sequence, in this order, and give yourself the written record that makes a dispute winnable.

- 1 **Give notice in writing, on time.** Follow the notice period in your agreement (usually 30 to 60 days) and send it by email or WhatsApp so you have proof of the date.
- 2 **Request a joint move-out inspection** with the owner present, and film it. Show every room in the condition you are leaving it.
- 3 **Pay every utility bill** and keep the receipts — electricity, water, internet, gas. Unpaid bills in your name are a lawful deduction.
- 4 **Hand back keys and access cards** against a written acknowledgement of possession.
- 5 **Ask for the deposit in writing**, with an itemised statement of any deductions, and a refund date. Under MTA-style laws the deposit is refunded when the landlord takes back vacant possession, after lawful deductions — in Tamil Nadu, within a month of your vacating.
- 6 **Follow up on day 31** if the money has not arrived, and start the escalation ladder below.

The landlord may lawfully deduct only what can be proved: unpaid rent, unpaid utility bills, society dues the agreement puts on you, and the cost of repairing damage beyond normal wear and tear — with bills or a reasoned account. Routine repainting between tenants, ordinary ageing, faded paint and minor scuffs are not your cost. An unexplained lump-sum deduction is exactly what a court strikes down.

Do this before you hand back the keys

Photograph and film the flat in its final condition · take final meter readings · clear every bill in your name · get the handover acknowledged in writing · and confirm the refund date and any deductions in the same message. The final walkthrough video is your single strongest piece of evidence.

Time the exit as deliberately as the entry. Confirm the notice date in writing, book the joint inspection before you book the movers, and do not hand back the keys until the inspection is filmed. If the landlord is unavailable, send your own dated video of the empty, clean flat — that video becomes

your evidence of the condition you left it in.

23. When the landlord won't refund: the escalation ladder

A withheld deposit feels final. It is not. Indian law stacks protections behind the tenant: the deposit is trust money, the burden of proving a deduction is on the landlord, and courts routinely award interest on wrongfully held sums. Work up this ladder, one rung at a time.

Step	What you do	Timing
1. Polite reminder	WhatsApp or email asking for the refund and any itemised deductions	Around day 31 after vacating
2. Formal demand	A dated demand letter by registered post / acknowledgment due, giving 15 days and citing the agreement and your state's law	By day 45
3. Legal notice	A lawyer's notice citing the demand and the specific breach	If no reply
4. Forum	Rent Authority / Rent Court in MTA states; a civil money-recovery suit (or a Small Causes Court summary suit) elsewhere	After the notice period
5. Interest and costs	Claim interest on the withheld deposit and litigation costs	In the same filing

Two facts make this practical rather than daunting. First, for an ordinary private tenancy the deposit is a plain money debt, and the dependable route is a civil suit — not a consumer complaint, because the Supreme Court has held that letting out premises is not a 'service' and a plain tenant is generally not a 'consumer'. Most online guides tell you to 'just file in the consumer forum'; for a private landlord that advice is often wrong and gets dismissed at the threshold. Second, the limitation period for recovering the money is generally three years under the Limitation Act, 1963, running from the date you demanded it back — so do not let it drift.

Where a state has a Rent Authority — Assam, UP, Tamil Nadu, Andhra Pradesh and the MTA union territories — that forum is faster and cheaper than a civil court. Where it does not, a suit for money had and received is the default, and a Small Causes Court gives a quicker summary trial for a defined sum. Courts commonly award interest on wrongfully withheld deposits, and costs.

Most cases settle at rung two

A dated demand letter by registered post is the cheapest, highest-yield step in the whole ladder. It costs a few rupees, it creates proof of service, and a large share of landlords refund once a formal, correctly worded demand lands. Keep the postal receipt — it is evidence the notice was served.

For smaller claims, two faster routes exist before a full civil suit. A Small Causes Court gives a summary trial for a defined money sum, and for amounts up to Rs 20 lakh a Permanent Lok Adalat can settle the matter without the cost of a full trial. Both are designed for exactly this kind of claim — a landlord holding money that is not theirs.

24. Eviction: what a landlord can and cannot do

Understanding eviction from the landlord's side is not disloyalty — it tells you exactly how much room you have. The single most important fact: a landlord cannot evict you by self-help. No changing locks, no cutting power or water, no removing your belongings, however long you have overstayed. Possession is recovered only through an order of the correct forum.

Which forum depends on your state. Where a Rent Authority and Rent Court exist under an MTA-style law, eviction petitions go there, with a target of about 60 days and limited adjournments; Tamil Nadu's Rent Court targets 90 days for most grounds. Where no rent law applies, the landlord serves a notice under Section 106 of the Transfer of Property Act — 15 days for a residential monthly tenancy, six months for agricultural or manufacturing use — and then files a civil suit for possession.

The grounds for eviction are a short, specific list: non-payment of rent (often two to three months' arrears, with a chance to pay); subletting without consent; misuse of the premises after written notice; the landlord's genuine personal need; and substantial damage. Even where a ground exists, the landlord must serve proper notice, file a petition, and obtain an order. A defective notice can sink the case, and contested evictions under the old Acts can take years.

Two things protect you if a dispute turns ugly. Keep paying rent (or deposit it with the forum) — non-payment is the easiest ground for the landlord to prove. And if the landlord overstays the process or acts illegally, document it: under the MTA an overstaying tenant owes twice the rent for two months and four times thereafter, but the landlord needs an order to enforce it, and self-help remains illegal regardless.

If it escalates

Keep paying · keep the paper trail · do not retaliate by withholding rent or damaging the property · and get a local advocate involved early if a notice arrives. A well-documented tenant is a tenant who keeps their deposit and their good record.

PART SIX

Special situations

Seven chapters for the cases the standard advice skips: shared flats, moving cities, an NRI landlord, a landlord who sells, switching flats, renting for a family, and the ten mistakes that cost renters the most money.

25. Shared flats and flatmates: rent, liability and the exit

A shared flat quietly spreads one person's liability across several. The person named on the agreement is the one the landlord will pursue for the whole rent and the whole deposit — not the flatmates who may have moved out. Before you move into a shared flat, decide three things in writing.

- 1 **Who is on the agreement.** Ideally every flatmate is named. If only one is, that person carries the legal exposure, and the others should sign an internal written agreement with them.

- 2 **How the deposit and rent are split** — and what happens when a flatmate leaves mid-tenancy and a replacement is found. Put the split and the replacement rule in the internal agreement.
- 3 **How the exit works.** Who gives notice, who gets the deposit back, and how it is divided. The landlord refunds the deposit to the named tenant, so the internal split must be agreed up front.

The practical risk in a shared flat is the mid-tenancy gap: a flatmate leaves, the replacement takes weeks to find, and the remaining flatmates cover the shortfall. A written internal agreement — even a WhatsApp message everyone confirms — is what stops that turning into a dispute. Keep the landlord out of the internal split; the landlord only sees the total.

26. Renting remotely: relocating from another city

Relocating renters are the favourite target of rental fraud, because they cannot easily visit and are under time pressure. The courier-keys scam — 'the owner is abroad, pay the deposit and the keys will be couriered' — is built entirely around that gap. Relocating well is a matter of refusing to pay before a human you trust has stood in the flat.

- **Never pay before an in-person visit** — yours, or a trusted friend's or colleague's in the destination city. No legitimate landlord objects to a viewing.
- **Insist on a live video call** in which the landlord walks the flat in real time, opening doors and showing the building exterior. A scammer with stolen photos cannot do this.
- **Book temporary accommodation first** — a serviced apartment, hotel or PG for one to two weeks — and do the flat hunt in person after you arrive. It costs less than a single fraud.
- **Send your renter profile ahead** so owners take you seriously before you land.
- **Pay only after signing**, by bank transfer to the owner's account, with a receipt.

27. The NRI landlord and the power of attorney

Many Indian flats, especially in Bengaluru and the big metros, are owned by non-resident Indians. That changes two things you must handle.

First, the authority to sign. An agreement signed by a relative or caretaker is only valid if that person holds a notarised power of attorney from the owner. Ask to see it. Without it, the person may have no right to collect your deposit or bind the owner, and your tenancy is on shaky ground.

Second, tax. If your landlord is a non-resident, the tenant must deduct tax on the rent under Section 195 — usually 30% plus surcharge and cess — every month, with a TAN and Form 27Q. The Rs 50,000 threshold does not apply, and this is a common and costly compliance miss. Deduct it, deposit it, and give the landlord the certificate; the landlord can claim a refund when filing their return.

Verify the POA before you pay

A power of attorney must be notarised (and, where executed abroad, often apostilled or consularised). If the 'owner' is represented by someone who cannot produce it, treat the deal as unverified and do not transfer a large deposit.

28. When the owner sells the flat

A landlord selling the flat does not automatically end your tenancy. The settled principle is that a sale does not by itself break a lease: the buyer steps into the seller's shoes and takes the property subject to the tenancy. But the protection is only as strong as your agreement. An eleven-month leave-and-licence is weaker than a registered lease, and the buyer may genuinely want vacant possession.

- **Ask early** if the owner is planning to sell, and get any assurance about your tenancy in writing.
- **Read your agreement** for a clause on sale or early termination, and note the notice the owner must give you.
- **If you are asked to leave early**, negotiate: a notice period you can live with, and help with relocation costs, in writing.
- **Keep your evidence file current** so a new owner cannot invent deductions at handover.

29. Switching flats without losing your deposit

The awkward truth of moving flats is the overlap: you need the old deposit back before you can comfortably pay the new one. Sequence it carefully.

- 1 Give written notice on time, and request a joint move-out inspection.
- 2 Get the deposit refund date and any deductions in writing before you leave.
- 3 Time your new move-in so the new deposit is due after the old refund lands, or budget to bridge a short gap from savings.
- 4 Be careful about 'adjusting' the deposit against the last month's rent. It is tempting, but most agreements bar it, non-payment of rent is itself a default, and it can cost you your negotiating position on damages.
- 5 Keep every document for both flats in one folder, so a delayed refund on the old one never blocks you.

30. Renting for a family: stability and society

Families rent for different reasons than singles — stability, schools and society acceptance rank above the lowest rent. A few moves make a family tenancy smoother.

- **Address proof matters** for school admission: a stamped or registered agreement is the cleanest document, so get the agreement done properly.
- **Confirm society rules** on family composition, guests and vehicle registration before you commit.
- **Negotiate a longer term with a rent cap.** A family that will stay for years is valuable to a landlord; trade that stability for a written, capped annual increase.
- **Document the inventory thoroughly** — a family flat has more furniture and fittings, and therefore more to argue about at exit.

31. Ten mistakes that cost renters the most money

Every one of these is avoidable, and every one has appeared in this playbook.

- 1 Paying a token, visiting fee or deposit before standing in the flat.
- 2 Paying the deposit in cash with no receipt or transfer note.
- 3 Signing an agreement without reading the repaint, damages and lock-in clauses.
- 4 Assuming a deposit cap exists in your city when it does not.
- 5 Skipping the dated photo and video record on move-in day.
- 6 Paying rent in cash so the tenancy has no paper trail.
- 7 Withholding rent to pressure a repair or a refund.
- 8 Forgetting the landlord's PAN until HRA-claim season.
- 9 Ignoring TDS on rent above Rs 50,000 a month.
- 10 Letting the deposit-refund deadline drift past the three-year limitation window.

32. Reading a landlord: the questions that reveal a bad one

Most tenancy pain is foreseeable at the viewing, if you ask the right questions and listen to the answers. A good landlord answers plainly; a difficult one deflects. Ask these before you commit.

- **Why is the flat vacant, and for how long?** A flat empty for months tells you the owner is motivated — useful in a deposit negotiation.
- **Who was the last tenant, and may I speak to them?** A refusal here is the loudest red flag in the whole conversation. A landlord with nothing to hide will usually allow a reference.
- **Who does repairs, and how quickly?** A vague answer predicts a slow, argumentative tenancy.
- **How do you handle the deposit at exit?** 'We deduct for painting and cleaning' is the answer that costs you money; press for the itemised, evidenced standard.
- **Was the rent raised for the last tenant, and by how much?** It tells you what to expect at renewal.
- **Will the agreement be written and stamped, and who pays?** A landlord who suggests keeping it 'informal to save stamp duty' is setting you up for a paperless dispute.

Two behaviours matter as much as the answers. Pressure — 'three others are viewing today, decide by evening' — is engineered to stop you verifying. And evasion about ownership, the deposit or the previous tenant is a preview of how the exit will go. Trust the pattern, not the pitch.

APPENDICES

Tools you can print and use today

A quick-reference stamp duty table, a deposit-refund demand letter, an inspection checklist, a 30-day plan for a new city, and a glossary.

A. State stamp duty and registration — quick reference

Typical 2026 residential figures. Confirm the exact amount on your state's stamps and registration portal before you pay; rates change by notification.

State	11-month agreement	12 months or more	Portal
Maharashtra	Stamp + registration (all agreements)	Same; registration mandatory	IGR Maharashtra
Delhi	Often Rs 100 paper; legal rate 2% of annual rent	Register; Rs 1,100	Delhi e-stamp / DORIS
Karnataka	About 1%; Rs 500 cap common	Register; Rs 500	Kaveri Online Services
Tamil Nadu	About 1% of rent + deposit	Register with Rent Authority	TNREGINET
Uttar Pradesh	About 2% of annual rent	Register	IGRSUP
Telangana	About 0.5% of rent	Register; Rs 1,000	Telangana registration
Gujarat	About 1% of annual rent	Register	GARVI

B. Deposit refund demand letter — template

Copy this into an email or print it and send by registered post with acknowledgment due. Fill the brackets. Keep the postal receipt.

To: [Landlord name], [Landlord address]

Date: [DD/MM/YYYY]

Subject: Demand for refund of security deposit — premises at [flat address]

Dear [Landlord name],

I was a tenant at the above premises from [start date] to [end date], under the rental agreement dated [agreement date]. The agreed security deposit was Rs [amount], paid on [payment date] by bank transfer / UPI (reference [number]).

I vacated the premises on [end date] and handed over peaceful possession with all utility dues cleared and the premises in reasonable condition, as recorded in the joint inspection on [inspection date]. To date, [number] days later, the deposit has not been refunded and no itemised statement of any deductions has been provided.

The security deposit is my money, held by you only as security. You may retain only amounts you can prove are owed — unpaid rent, unpaid utility bills, or the cost of repairing damage beyond normal wear and tear. Routine repainting and ordinary ageing are not recoverable.

I hereby demand the refund of Rs [amount] within fourteen (14) days of receipt of this letter, failing which I will be constrained to initiate proceedings before the appropriate forum, including a claim for interest and costs, without further notice.

Yours sincerely,

[Your name] · [Phone] · [Email] · [Forwarding address]

C. Move-in / move-out inspection checklist

Print two copies — one for move-in, one for move-out — and get both signed.

Item	Move-in	Move-out
Dated photos / video of every room	[]	[]

Item	Move-in	Move-out
Electricity and water meter readings recorded	☐	☐
Signed inventory of furniture and fittings	☐	☐
Key and access-card count	☐	☐
Deposit receipt and bank/UPI confirmation	☐	☐
Owner name, PAN and bank details in writing	☐	☐
All utility bills cleared	☐	☐
Written notice period served	☐	☐
Joint inspection done and filmed	☐	☐
Deposit refund date agreed in writing	☐	☐

D. The 30-day new-city renter plan

Moving to a new city for a job? Run this compressed plan.

Week	Focus	Deliverable
Week 1	Budget, areas by commute, document folder (offer letter, salary slips, bank statements, previous-landlord reference, masked Aadhaar)	A shortlist and a renter profile
Week 2	Search two or three sources, visit four to six flats with the ownership checklist	Two or three vetted options
Week 3	Negotiate rent and deposit, read the draft agreement clause by clause, freeze terms in writing	An agreed deal on paper
Week 4	Sign and pay by bank transfer, move-in protocol, police verification, register where required	Keys, evidence file, and a clean start

E. Glossary

Term	Meaning
Security deposit	Refundable money held by the landlord against unpaid dues or damage
Leave and licence	An agreement that gives a licence to occupy, not tenancy rights; common in Maharashtra and increasingly elsewhere
Lock-in period	A minimum stay the tenant must honour, or pay a penalty
Model Tenancy Act 2021	The Centre's template tenancy law; binding only where a state enacts it
Rent Authority	The first-tier forum under MTA-style laws
Section 194-IB / 194-I	The TDS-on-rent provisions, now within Section 393 of the Income-tax Act, 2025
HRA	House Rent Allowance; partly tax-exempt under the old regime
Wear and tear	Ordinary ageing the tenant is not charged for
E-stamp	Electronic stamping of an agreement; verify the certificate on the state portal
Bailment	A legal relationship where the landlord holds your deposit as trustee, not as owner

F. Landlord and flat vetting checklist

Run this before you pay any money. If two or more answers are 'no' or 'unclear', slow down.

Check	Done
You have visited the flat in person (or a trusted person has)	☐
The person showing it is the owner or holds a valid POA	☐
You have seen ownership proof (sale deed / allotment / tax receipt)	☐
The deposit is paid to the owner's own bank account, with a receipt	☐
The agreement is written, stamped and (where required) registered	☐
The deposit-refund timeline is written into the agreement	☐
Lock-in, notice period and rent-revision terms are clear	☐
Society restrictions (bachelors, pets, guests) are confirmed in writing	☐
The all-in monthly cost, including maintenance, is confirmed in writing	☐
Meter readings and a signed inventory are recorded on move-in	☐

G. Rent receipt format (for your HRA claim)

A valid rent receipt carries the landlord's name, your name, the address, the amount, the period, the mode of payment and the landlord's signature. Use a revenue stamp if you pay over Rs 5,000 in cash.

RENT RECEIPT

Received from: [your name]

Amount: Rs [amount] · Period: [month/year]

Towards: rent for [flat address]

Mode of payment: [bank transfer / UPI / cash] · Reference: [number]

Landlord: [name] · PAN: [PAN, if annual rent exceeds Rs 1,00,000]

Signature: _____ Date: [DD/MM/YYYY]

H. The 10-minute agreement red-flag scan

You do not need to be a lawyer to spot a bad agreement. Scan for these eight red flags; each one has cost a tenant money.

Red flag	Why it costs you
Deposit with no refund timeline	Removes any deadline the landlord must meet
Blanket 'repaint on exit' or 'deep-clean fee'	Routine maintenance charged to you
'Damages at landlord's discretion'	Lets a lump-sum deduction appear at exit
Lock-in penalty not capped in rupees	A two-month salary hit for leaving early
Notice period longer than your job flexibility	You pay rent on a flat you have left
Rent revision clause with no notice period	A sudden mid-year hike you did not expect
No clause on landlord entry	Loss of quiet possession and privacy

Red flag	Why it costs you
Maintenance 'as applicable' with no figure	A monthly cost that appears only after signing

If three or more of these appear, ask for the agreement to be revised before you sign. A landlord who refuses to fix a clearly one-sided clause is telling you how the exit will go.

I. Twenty-five questions renters ask

Q. How much deposit is legal in Bengaluru? There is no statutory cap. The market runs two to ten months; negotiate with evidence, not a law that does not exist.

Q. Is the Karnataka two-month deposit cap real? No. The 2025 amendment only decriminalised offences; it did not cap deposits.

Q. Which states actually cap deposits? Assam and Uttar Pradesh cap homes at two months; Tamil Nadu and Andhra Pradesh at three months; plus a few MTA union territories.

Q. Must I register an 11-month agreement? Not compulsorily in most states; Maharashtra requires registration for every leave-and-licence agreement.

Q. Who pays stamp duty and registration? It is negotiable; often the tenant. Fix who pays, in the agreement.

Q. Can the landlord keep my deposit for painting? No. Routine repainting between tenants is a landlord cost, not yours.

Q. When is my deposit due back? MTA-style states: on handover. Tamil Nadu: within a month. Elsewhere, whatever your agreement says — so write 30 days into it.

Q. What if the landlord won't refund? Polite reminder, then a registered-post demand letter, then a legal notice, then the Rent Authority or a civil suit. Limitation is generally three years.

Q. Can I file in the consumer forum? For a private landlord, usually not — the Supreme Court has held a plain tenant is generally not a 'consumer'.

Q. Can the landlord evict me without a court order? No. Self-help eviction — changing locks, cutting utilities — is illegal.

Q. How much notice ends a monthly tenancy? Fifteen days under Section 106 of the Transfer of Property Act if the agreement is silent; otherwise the agreement's notice period.

Q. Can rent be raised mid-tenancy? Only as the agreement allows; MTA-style laws require three months' notice and allow a rise once a year.

Q. Do I need the landlord's PAN? Yes, for your HRA claim once annual rent exceeds Rs 1,00,000.

Q. Must I deduct TDS on rent? If you are an individual or HUF not under audit and rent exceeds Rs 50,000 a month, yes — 2% once a year, via Form 26QC.

Q. What if my landlord is an NRI? You must deduct under Section 195 — usually 30% plus surcharge and cess, monthly, with a TAN and Form 27Q.

Q. Is HRA available under the new tax regime? No. HRA exemption exists only in the old regime.

Q. Which cities get the 50% HRA limit? From FY 2026-27: Delhi, Mumbai, Kolkata, Chennai, Bengaluru, Hyderabad, Pune and Ahmedabad. Others are 40%.

Q. Can I pay rent to my parents and claim HRA? Yes, if it is genuine — actually transferred, declared as their income, and at a market rate.

Q. Is police verification required? It is commonly required, and in Bengaluru it is the owner's duty. Do it.

Q. What proves my tenancy without a written agreement? A bank or UPI trail, a WhatsApp message confirming the terms, receipts, and a witness. The money claim rests on proof of payment.

Q. Can the landlord enter without notice? No. You have a right to quiet possession; entry needs prior notice.

Q. Can I sublet a room? Only with the landlord's written consent, usually through a supplementary agreement.

Q. What if the owner sells the flat? A sale does not by itself end the lease — the buyer steps in — but check your notice and early-termination clauses.

Q. Is a verbal tenancy valid? An oral tenancy under a year can be valid, but it is a proof hurdle. Always get it in writing.

Q. How do I avoid rental scams? Never pay before an in-person visit, verify ownership documents, and pay by bank transfer to the owner's account.

J. Ready-to-send messages

Adapt these; keep them polite, specific and dated. Save the replies.

Deposit reduction

'Hi [name], I am keen on the flat. I can offer a three-month notice period and my salary slips and previous landlord reference. In return, could we keep the deposit at two months? I can sign this week.'

Repair before move-in

'Hi [name], before I transfer the deposit, can we confirm in writing that the [tap/geyser] will be fixed before I move in? I will note it in the inventory so we both have the same record.'

Giving notice

'Hi [name], as per our agreement I am giving notice of [X] days and will vacate on [date]. Please confirm a joint inspection before then. I will clear all utility bills and hand back the keys against a written acknowledgement.'

Requesting the refund

'Hi [name], I vacated on [date] and handed back possession. As per the agreement, the deposit of Rs [amount] is due within 30 days. Please share any itemised deductions and the refund. Thank you.'

K. The renter's year — what to do when

A simple calendar that keeps your money safe across the tenancy.

When	What to do
Moving in	Build the evidence file: photos, meter readings, signed inventory, receipts, owner PAN
Every month	Pay rent by bank transfer or UPI with a purpose note; keep the receipt
Jan-Feb	Collect rent receipts and the landlord's PAN; submit the HRA declaration to your employer
March	If rent exceeds Rs 50,000 a month, deduct 2% TDS and deposit it via Form 26QC by 30 April
At renewal	Confirm any rent revision in writing and sign a fresh agreement; re-check the deposit terms
Before vacating	Give written notice, clear utility bills, book the joint inspection, film it
On vacating	Hand back keys against an acknowledgement and ask for the refund date in writing
If the refund is late	Reminder, then a registered-post demand, then a legal notice, then the forum

L. The one-page renter's cheat sheet

Print this, or photograph it, and keep it on your phone for the day you sign and the day you leave.

Deposit: No cap in most states. Assam & UP cap homes at 2 months; TN & AP at 3 months. Bengaluru has NO cap — negotiate, do not cite a rule that does not exist.

Before you pay: stand in the flat; verify ownership; never pay a token, visiting or gate fee; pay the deposit only by bank transfer to the owner, with a receipt.

The agreement: refund timeline, deduction standard, lock-in, notice, rent-revision and entry clauses — all in writing. Fix the repaint and 'discretion' clauses.

Move-in: dated photos/video, meter readings, signed inventory, owner PAN and bank details, receipts.

Monthly: pay by transfer with a purpose note; keep the receipt; never withhold rent.

Tax: HRA only in the old regime; landlord PAN if annual rent exceeds Rs 1,00,000; TDS 2% if rent exceeds Rs 50,000 a month.

Move-out: written notice, joint filmed inspection, clear all bills, hand back keys against an acknowledgement, get the refund date in writing.

If the refund is late: reminder, then a registered-post demand letter, then a legal notice, then the Rent Authority or a civil suit. Limitation: three years.

Eviction: a landlord can never evict by self-help — no changing locks, no cutting utilities. Possession needs an order.

Sources

Built from primary and official material: the Model Tenancy Act, 2021 (Ministry of Housing and Urban Affairs; PRS Legislative Research); the Karnataka Rent (Amendment) Act, 2025 and its Bill text, and law-firm analysis of it; the Registration Act, 1908 and state stamps and registration portals; the Income Tax Department's guidance on TDS on rent and on HRA (Section 10(13A)); the Income-tax Act, 2025 and Income-tax Rules, 2026; the Transfer of Property Act, 1882; and reported consumer-commission and High Court decisions on deposit refunds. Scam patterns are drawn from 2026 police and press reporting, including the Bengaluru Rs 21.1 lakh rental fraud. Verified October 2026.

This guide is general information, not legal advice for your specific situation. Rules and rates change; confirm them on the official portal for your state before you act.